

MASTER PROFESSIONAL SERVICES AGREEMENT (SaaS / VENDOR)

1. STATEMENT OF WORK & DELIVERABLES

Vendor: CloudSphere Solutions LLC. Client: Horizon Financial Technologies Corp.

Vendor shall deliver cloud security auditing, SOC2 readiness assessment, and infrastructure hardening.

2. PAYMENT TERMS & AUDIT RIGHTS

Contract Value: \$75,000 USD payable across three milestones (30% upfront, 40% draft delivery, 30% signoff).

Invoices are payable Net 30 days. Client reserves the right to audit vendor logs once annually with 15 days notice.

3. SERVICE LEVEL AGREEMENT (SLA) & PENALTIES

Vendor guarantees 99.9% uptime for audit portal. Downtime exceeding 4 hours triggers a 10% credit penalty.

4. LIMITATION OF LIABILITY & INDEMNIFICATION

Total aggregate liability of either party shall be capped at 2x the total fees paid under this Agreement.

Exceptions: Gross negligence, willful misconduct, and breach of data security obligations are uncapped.

5. TERMINATION RIGHTS

Either party may terminate for convenience with forty-five (45) days prior written notice.

Immediate termination upon insolvency, bankruptcy petition, or material uncured breach after 15 days notice.